

Federal Maritime Commission

Docket No. 18-04

Falcone Global Solutions, LLC

v.

Maurice Ward Networks, Ltd. d/b/a Maurice Ward Group:

Maurice Ward & Co., BV,; and Maurice Ward & Co., S.R.O

JOINT STATUS REPORT

COME NOW Complainant Falcone Global Solutions, LLC and Respondents Maurice Ward Networks, Ltd., Maurice Ward & Co., BV and Maurice Ward & Co., S.R.O., by and through their undersigned counsel of record, and submit this Joint Status Report with proposed deadlines for further handling of the instant matter. 46 C.F.R. § 502.141(h).

1. Preliminary Statement.

The parties show that there is a pending Federal lawsuit in the Northern District of Georgia filed by Falcone Global Solutions, LLC against the same Respondents herein; to wit: *Falcone Global Solutions, LLC v. Maurice Ward Networks, Ltd., et al.*, Civil Action No. 1:18-cv-03379-MHC.

In the referenced Federal case, the parties have recently received a Scheduling Order, a copy of which is attached hereto. This Scheduling Order contemplates an eight (8) month discovery track.¹

The parties respectfully request that the Commission consider adopting the same scheduling track as employed by the Federal Court. This will allow both matters to proceed on parallel schedules, thus conserving the resources of the parties and enabling discovery to proceed in an orderly manner in both forums.

The parties further state that they are in the process of scheduling a mediation of both the FMC action and the Federal lawsuit in November 2018.

2. Proposed Schedule.

In light of the foregoing, the parties propose the Court the following schedule:

1. All discovery to be completed by June 20, 2019.
2. Amendment of pleadings and joinder of any parties to be completed on or before October 19, 2018.
3. Complainant to identify experts (if any) on or before February 19, 2019.
4. Respondents to identify experts (if any) on or before March 19, 2019.
5. All dispositive motions to be filed on or before July 20, 2019.
6. All pretrial motions, including challenges to expert testimony, motions in limine and other matters related to the conduct of the hearing for this matter to be filed no later than forty-five (45) days before the hearing.
7. Hearing in this matter to take place: TBD.

¹ Discovery in the Federal Court suit, however, has not started in light of a pending Motion to Dismiss filed by Respondents. LR 26.2(A), NDGa (“The discovery period shall commence *thirty days after the appearance of the first defendant by answer to the complaint*”) (emphasis added).

8. Discovery limits as set forth in 46 C.F.R. § 502.141, *et seq.*, to apply unless otherwise modified herein:

- Each party is limited to twenty-five (25) interrogatories. Responses due within thirty (30) days of service.
- Each party is limited to twenty-five (25) requests for production. Responses due within thirty (30) days of service.
- Each party is limited to twenty-five (25) requests for admission. Responses due within thirty (30) days of service.

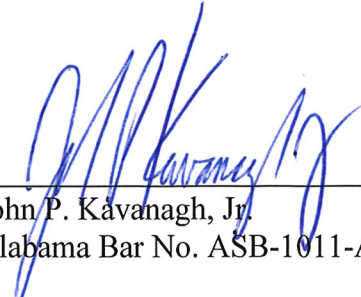
Respectfully submitted this, the 27th day of September, 2018.

s/ Charlene S. McGowan (by permission)

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**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF GEORGIA
ATLANTA DIVISION**

**FALCONE GLOBAL
SOLUTIONS, LLC,**

Plaintiff,

v.

**MAURICE WARD NETWORKS,
LTD., MAURICE WARD & CO.
BV, MAURICE WARD & CO.,
S.R.O.,**

Defendants.

CIVIL ACTION FILE

NO. 1:18-CV-3379-MHC

SCHEDULING ORDER

Upon review of the information contained in the Joint Preliminary Report and Discovery Plan form completed and filed by the parties, the Court orders that the time limits for adding parties, amending the pleadings, filing motions, completing discovery, and discussing settlement are as set out in the Federal Rules of Civil Procedure and the Local Rules of this Court, except as herein modified:

Discovery shall run for a eight (8) month period.

Further, in accordance with the mandates of the Eleventh Circuit, the Court believes strongly in the common-law right of access to judicial proceeding as an “essential component of our system of justice[,]” which can be overcome only by a showing of good cause. See Romero v. Drummond Co., Inc., 480 F.3d 1234, 1245 (11th Cir. 2007). As the case develops and the need arises for parties to file documents protected by the protective order on the docket, the Parties are instructed to carefully review the Northern District of Georgia Local Rules Appendix H, Standing Order No. 16-01, Ex. A (II)(J) and adhere closely to its requirements. The Court wishes to emphasize two mandates of this Standing Order which are often overlooked by litigants. First, requests to seal should be as narrowly drawn as possible, with the movant redacting and requesting sealing for “only those portions of the filing for which there is legal authority to seal.” Id. Second, it is often the case that the party seeking to use a protected document and filing the motion to seal did not originally produce the document and mark it confidential under the protective order. Under the Standing Order, it is the burden of the party that first marked the document confidential to establish good cause before the Court to seal the document. Thus, it is not sufficient for the non-movant to consent to the motion to seal. Rather, the non-movant must file a brief in support “(i) identify[ing], with specificity, the documents or portions thereof for

which sealing is requested by the non-movant and (ii) briefly explain[ing] the nature of the requestor designation made by the non-movant.” Id. If the non-movant who marked the information confidential fails to file such a brief, they have not established good cause for sealing, and the motion to seal will be denied.

IT IS SO ORDERED this 21st day of August, 2018.

A handwritten signature in blue ink that reads "Mark H. Cohen". The signature is written in a cursive, flowing style.

MARK H. COHEN
United States District Judge